

IN THE COURT OF COMMON PLEAS  
KNOX COUNTY, OHIO

STATE OF OHIO, ex rel. DAVE YOST,  
ATTORNEY GENERAL

Plaintiff,

v.

THE LANDINGS PROPERTY OWNERS  
ASSOCIATION, INC., *et al.*,

Defendants.

Case No. 20IN06-0149

JUDGE RICHARD D. WETZEL

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MULLINS BROS. LTD.,

Third-Party Plaintiff,

v.

CAROL A. DIDINGER, TRUSTEE, *et al.*,

Third-Party Defendants.

**DEFENDANT CITY OF MOUNT VERNON'S MOTION**  
**FOR APPOINTMENT OF RECEIVER**

In response to the decision of this Court dated September 23, 2024, and pursuant to R.C. 2735.01(A)(4), (6), (7), (C) and/or (D), Defendant City of Mount Vernon files this Motion seeking appointment of a receiver to act on behalf of The Landings Property Owners Association, Inc. (also referred to as the Landings Common Area Association, Inc.) (referred to below as the "POA"), which the court has determined is the owner of the land upon which the dam, the lake, and the spillway (collectively, the "Dam Property") are situated. Plaintiff submits that the Motion should be granted for three primary reasons.

First, the Receiver is necessary to take all necessary and appropriate actions to reinstitute the POA such that it is in good legal standing.

Second, the Receiver is necessary to act on behalf of the POA to correct the deficiencies in the Dam Property and comply with the requirements of State of Ohio Dam Safety Laws and Rules and the City of Mount Vernon Stormwater Ordinances, and thereafter maintain the Dam Property.

Third, the Receiver is necessary to impose and collect assessments from the property owners that the Court has ruled are liable to the POA for the care and maintenance of the Dam Property.

## **CONCLUSION**

The Court should appoint the Receiver with all the general powers of a court-appointed receiver under applicable law, such that the Receiver is empowered to take all actions described in the Motion including, without limitation, the right to proceed at law or in equity to compel compliance with the terms of the conditions, restrictions, and covenants set forth in the Declaration of Restrictions, and to prevent the violation or breach of any of them.

## **RECEIVER CANDIDATES**

Attached are resumes of two individuals who have expressed an interest in and willingness to serve as receiver. One, Louis Tosi, is a Toledo-based environmental lawyer with fifty years of experience. His resume does not reflect his hydrological/storm water experience, to wit,

- He is currently working with several expert witnesses in hydrology regarding prediction of peak, average and seasonal flows of streams in an enforcement case brought by the USACE.
- As to storm water, he was counsel to the City of Toledo in a major federal combined sewer overflow case, which involved analysis of peak storm flow, storage, and emergency discharge.

The second, Robert Weiler, has been a real estate developer, appraiser, realtor, and civic leader in Central Ohio for more than fifty years. Not reflected in his resume is that he has been a (Franklin County) court-appointed receiver in three matters, where his responsibilities included:

- Preserving the assets of numerous apartment buildings which had been neglected and needed competent management. This involved, *inter alia*, hiring a management company, removing nonpaying occupants, bringing in security, protecting the interests of existing tenants, overseeing payment of all expenses, and submitting periodic reports to the court.

Respectfully submitted,

/S/Stephen P. Samuels

Stephen P. Samuels (0007979)

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Christina Wieg (0098693)

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P. Robert Broeren, Jr. (69166)

Director of Law

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Mount Vernon, Ohio 43050

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*Counsel for Defendant, City of Mount Vernon*

## **CERTIFICATE OF SERVICE**

I hereby certify that the foregoing was served by email and/or regular mail on  
October 2, 2024, upon the following:

|                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <i>Via Email</i><br>Kelli J. Amador<br>Thomas J. Bonasera<br>William M. Mattes<br>DINSMORE & SHOHL, LLP<br>191 W. Nationwide Blvd., Suite 200<br>Columbus, Ohio 43215<br>Email: <a href="mailto:thomas.bonasera@dinsmore.com">thomas.bonasera@dinsmore.com</a><br><a href="mailto:kelli.amador@dinsmore.com">kelli.amador@dinsmore.com</a><br><a href="mailto:bill.mattes@dinsmore.com">bill.mattes@dinsmore.com</a><br><i>Attorneys for Defendant Mullins Bros. Ltd.</i> | <i>Via Email</i><br>Brett Kravitz, Joseph Wambaugh, Kevin Porter<br>Assistant Attorneys General<br>Environmental Enforcement Section<br>Ohio Attorney General's Office<br>30 East Broad Street, 25 <sup>th</sup> Floor<br>Columbus, Ohio 43215<br>Email: <a href="mailto:Brett.Kravitz@OhioAGO.gov">Brett.Kravitz@OhioAGO.gov</a><br><a href="mailto:Joseph.Wambaugh@OhioAGO.gov">Joseph.Wambaugh@OhioAGO.gov</a><br><a href="mailto:Kevin.Porter@OhioAGO.gov">Kevin.Porter@OhioAGO.gov</a><br><i>Attorneys for Plaintiff State of Ohio</i> |
| <i>Via Email</i><br>Stephen E. Chappellear, Esq.<br>Kyle D. Tucker, Esq.<br>Eastman & Smith Ltd.<br>100 E. Broad Street, Suite 2100<br>Columbus, Ohio 43215<br><a href="mailto:sechappellear@eastmansmith.com">sechappellear@eastmansmith.com</a><br><a href="mailto:kdtucker@eastmansmith.com">kdtucker@eastmansmith.com</a><br><i>Attorneys for Long Third-Party Defendants</i>                                                                                         | <i>Via Email</i><br>Noel B. Alden, Esq.<br>Zelkowitz, Barry & Cullers, Ltd.<br>103 South Main Street<br>Mount Vernon, Ohio 43050<br><a href="mailto:nalden@zbclaw.com">nalden@zbclaw.com</a><br><i>Attorney for Amy E. Badertscher and Michael C. Reilly</i>                                                                                                                                                                                                                                                                                |
| <i>Via Email</i><br>Gary and Julie Fisher and Iris Morales<br>26 Wildwood Lane East<br>Mount Vernon, Ohio 43050<br><a href="mailto:femaleundercov@yahoo.com">femaleundercov@yahoo.com</a> <i>Pro Se Defendants</i>                                                                                                                                                                                                                                                        | <i>Via Email</i><br>Kenneth E. Lane, Esq.<br>812 Coshocton Avenue, #101<br>Mount Vernon, Ohio 43050<br><a href="mailto:laneoffices@gmail.com">laneoffices@gmail.com</a><br><i>Attorney for Defendant Michele D. Lane</i>                                                                                                                                                                                                                                                                                                                    |
| <i>Via Email</i><br>Cynthia A. Cunningham,<br>Esq. Kidwell &<br>Cunningham, Ltd. 112 North<br>Main Street<br>Mount Vernon, Ohio 43050<br><a href="mailto:ccunningham@kclawohio.com">ccunningham@kclawohio.com</a><br><i>Pro Se Defendant</i>                                                                                                                                                                                                                              |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |

|                                                                                                                                                                                                                                 |                                                                                                                                                                                                                                                                 |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <i>Via Email</i><br>John Witham<br>Kristen Witham<br><a href="mailto:drkristenwitham@gmail.com">drkristenwitham@gmail.com</a><br><i>Defendant</i>                                                                               | <i>Via Email</i><br>Nuh and Asiye Aydin<br>5 Longvue Court<br>Mount Vernon, Ohio 43050<br><a href="mailto:nuhaydin@gmail.com">nuhaydin@gmail.com</a><br><a href="mailto:sueda.aydin@yahoo.com">sueda.aydin@yahoo.com</a><br><i>Defendant</i>                    |
| <i>Via Email</i><br>Mark Stoessel - <a href="mailto:markstoessel@yahoo.com">markstoessel@yahoo.com</a><br>Sara Stoessel -<br><a href="mailto:sarastoessel@62020@gmail.com">sarastoessel@62020@gmail.com</a><br><i>Defendant</i> | <i>Via Email</i><br>Phillip and Helena Curry<br>63 Woodlake Trail<br>Mount Vernon, Ohio 43050<br><a href="mailto:phillipwcurry@gmail.com">phillipwcurry@gmail.com</a><br><a href="mailto:helenacurry7@gmail.com">helenacurry7@gmail.com</a><br><i>Defendant</i> |
| <i>Via Email</i><br>Deborah Forsythe -<br><a href="mailto:missdeb.forsythe@gmail.com">missdeb.forsythe@gmail.com</a><br><i>Defendant</i>                                                                                        | <i>Via Email</i><br>Chad Taylor<br><a href="mailto:submakersinc@gmail.com">submakersinc@gmail.com</a><br><i>Defendant</i>                                                                                                                                       |
| <i>Via Email</i><br>Karen L. Cherup<br><a href="mailto:Kcherup0506@yahoo.com">Kcherup0506@yahoo.com</a><br><i>Defendant</i>                                                                                                     | <i>Via Email</i><br>Matthew A. Cherup<br><a href="mailto:Matthew33308@yahoo.com">Matthew33308@yahoo.com</a><br><i>Defendant</i>                                                                                                                                 |
| <i>Via Email</i><br>Enon Banda<br>Deborah Banda<br><a href="mailto:deborahbanda@me.com">deborahbanda@me.com</a><br><i>Defendant</i>                                                                                             | <i>Via Email</i><br>Carol A. Didinger<br><a href="mailto:Cdidinger1937@gmail.com">Cdidinger1937@gmail.com</a><br><i>Defendant</i>                                                                                                                               |
| <i>Via Email</i><br>Gary Gray<br>Carolyn Gray<br><a href="mailto:Garygray824@gmail.com">Garygray824@gmail.com</a><br><i>Defendant</i>                                                                                           | <i>Via Email</i><br>Stephen D. Mullendore<br>Jeanne C. Mullendore<br><a href="mailto:mullendore@coldwellbanker.com">mullendore@coldwellbanker.com</a><br><a href="mailto:smulwin1@gmail.com">smulwin1@gmail.com</a>                                             |
| <i>Via Regular Mail</i><br>The Landings Property Owners Association, Inc.<br>c/o George Bertko, Registered Agent<br>P.O. Box 336<br>Mount Vernon, Ohio 43050<br><i>Defendant</i>                                                | <i>Via Regular Mail</i><br>Daniel Risser and Cara Salmon Risser 43<br>Wildwood Lane West<br>Mount Vernon, Ohio 43050<br><i>Defendant</i>                                                                                                                        |

/s/ Stephen P. Samuels  
STEPHEN P. SAMUELS (0006969)

# Louis E. Tosi

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1000 Jackson Street, Toledo, OH 43604 | PH: 419.345.3005 | E-Mail: ltosi@shumaker.com

## Professional History

### **SHUMAKER, LOOP & KENDRICK, LLP**

### **PARTNER**

**JULY 1998 - PRESENT**

*1000 JACKSON*

*TOLEDO, OHIO 43624-1573*

*419.321.1354*

- Focus of practice is in the areas of administrative law, environmental/complex litigation, and client consultation, including:
  - Extensive experience in representing companies in matters before both the United States and Ohio Environmental Protection Agencies, and in federal and state courts.
  - Regularly representing companies in various U.S. EPA regional offices throughout the country.
  - Representing a number of industry groups in enforcement, rulemaking and legislative matters at both the state and federal levels.
  - Representing clients before the United States Supreme Court; the Third, Fourth, Sixth, Seventh, and D.C. U.S. Courts of Appeals, and various federal district courts throughout the country.
  - Serving as lead counsel in two Ohio Supreme Court cases, which established important administrative law principles in Ohio.
  - Regularly defending environmental law and complex litigation cases in the trial courts of Ohio.
  - Being very involved in a U.S. EPA New Source Review initiative, representing a number of clients on important New Source Review “look back” enforcement issues, which affected the electric utility and refining industries.
  - Representing as co-counsel one of the nation’s leading municipal wastewater treatment in federal settlements involving the City of Toledo and its combined sewer overflow program.
  - Selected to head a task force on Brownfield remediation reform, leading to the current version of the Ohio Brownfield statute.
- Membership and Leadership roles in the administrative law and environmental areas:
  - Selected as one of the Best Lawyers in America, Ohio Super Lawyers, and Chambers USA lawyers.
  - A member of the Toledo, Ohio State, and American Bar Associations.
  - Past Vice-Chair of the American Bar Association’s Natural Resources Section Air Quality Committee.
  - Member of the American Bar Association Section on Administrative Law.
  - Past Chair of the Ohio State Bar Association Environmental Law Committee.
  - Member of the Ohio Chamber of Commerce Energy and Environment Committee.
  - Member of the Toledo Chamber of Commerce Energy and Environment Committee.
  - Chair of Ohio Governor Voinovich’s Task Force on Brownfields Reform.
  - Member of the Ohio EPA Air Group.
  - Member of the Solid Waste Public Advisory Groups.
  - Past President of Global Rivers Environmental Education Network in Ann Arbor, Michigan.

- Frequent speaker and presenter on environmental, sustainability, and climate issues affecting the utility industry, for a recent article, see:
  - Columbus Dispatch Op Ed. "Ohio needs the US EPA cost-benefit analysis rule", <https://www.dispatch.com/story/opinion/columns/2020/11/27/column-ohio-needs-us-epas-new-cost-benefit-analysis-rule/6420100002/>, as well as the list attached hereto.
- "Water Quality Improvement in the Ambiguity of Federal Leadership."
- 37th Bi-Annual Corporate Affiliates Achieving Results Executive Workshop, January 23-24, 2019.
- "Clean Power Plan after DJT Executive Order Promoting Energy Independence and Economic Growth, March 28, 2017."
- AHC Carbon & Innovation Workshop 7, Dallas, TX, April 19-20, 2017
- "Update: Clean Power Plan Energy Sector: Transformation or Regulatory Overreach?," AHC Carbon Innovation Workshop, Phoenix, AZ, January 19, 2016
- "Status of Legal Issues of the Clean Power Plan; Implications for the Power Industry," AHC Executive Workshop on Carbon Innovation, Phoenix, AZ, January 20, 2015.

*Copies will be provided upon request.*

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TOLEDO, OHIO 43606-2088

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#### **PARTNER**

**JUNE 1974 – JUNE 1998**

- Chairman, Management Committee; Chairman of Environmental Practice Group, 1979 - 1998

### **Education**

#### **LEGAL**

- The Ohio State University College of Law | Columbus, Ohio
  - Juris Doctor, cum laude, 1974
  - Member of Regional Moot Court Team

#### **COLLEGE**

- The Ohio State University | Columbus, Ohio
  - Bachelor of Arts in Mathematics with Distinction in Economics, cum laude, 1971
  - Honors Program, College of Arts and Sciences
  - Phi Beta Kappa

### **Bar Admissions**

- 2014 United States District Court, Western District of Kentucky
- 2003 United States District Court, Southern District of Ohio
- 1990 United States Court of Appeals for the Seventh Circuit
- 1981 United States Court of Appeals for the Third Circuit
- 1980 United States Court of Appeals for the Fourth Circuit

- 1979 United States Court of Appeals for the D.C. Circuit
- 1978 United States Supreme Court
- 1976 United States Court of Appeals for the Sixth Circuit
- 1975 United States District Court, Northern District of Ohio, Western Division
- 1974 Supreme Court of Ohio

## Cases

- *Allen County Citizens for the Environment, Inc. v. BP Oil Co.*, 762 F.Supp. 733 (N.D. Ohio Feb. 22, 1991)
- *Armco, Inc. v. U.S. E.P.A.*, 124 F.Supp.2d 474 (S.D. Ohio, Mar. 30, 1999)
- *Bakies v. City of Perrysburg*, 2004 WL 2334309, Ohio 6th Dist. Ct. App., Sept. 30, 2004
- *BP Amoco Chemical Co. v. Flint Hills Resources, LLC*, 615 F.Supp.2d 765 (N.D. Ill., May 20, 2009)
- *BP Amoco Chemical Co. v. Flint Hills Resources, LLC*, 05C3661, 2008 WL 4876869 (Aug. 29, 2008)
- *BP Amoco Chemical Co. v. Flint Hills Resources, LLC*, 05 C 5661, 2008 WL 4542738, N.D. Ill., June 11, 2008
- *BP Amoco Chemical Company v. Flint Hills Resources, et al.*, 600 F. Supp.2d 976 (N.D. Ill. Feb. 23, 2009)
- *Buckeye Power, Inc. v. Korleski*, 183 Ohio App.3d 179 (May 12, 2009)
- *Buckeye Power, Inc., et al. v. EPA*, 08-3399 (6th Cir. 2009)
- *Buckeye Power, Inc., et al. v. EPA*, 13-3672 (6th Ct. App. 2013)
- *Carter-Jones Lumber v. LTV Steel Co., et al.*, 2:92-CV-01161, S.D. Ohio
- *Catawba County, N.C. v. E.P.A.*, 571 F.3d 20 (D.C. Cir. 2009)
- *Centerior Serv. Co. v. Acme Scrap Iron & Metal Corp.*, 153 F.3d 344 (6th Cir. 1998)
- *Chevron, U.S.A., Inc. v. Natural Resources Defense Council, Inc.*, 104 S. Ct. 2778 (1984)
- *Cincinnati Gas & Electric Co. v. Environmental Protection Agency*, 578 F.2d 660 (6th Cir. 1978)
- *Clarke, et al. v. Sunoco Mid America*, G-4801-CI-200402472, Lucas County Ohio Common Pleas, Aug. 11, 2006
- *Cleveland Elec. Illuminating Co. v. E.P.A.*, 572 F.2d 1150 (6th Cir. 1978)
- *D.A.B.E., Inc. v. Toledo-Lucas Cty. Bd. of Health*, 96 Ohio St.3d 250, 773 N.E.2d 536 (Ohio S.Ct. Aug. 28, 2002)
- *Dayton Power & Light Co. v. Jones*, 140 Ohio App.3d 675, 748 N.E.2d 1171 (Dec. 12, 2000)
- *Dayton Power & Light Company v. Maynard*, 85AP-58, 1985 WL 10113, Ohio Ct. App., August 13, 1985
- *Dow Chemical Company, et al. v. Acme Wrecking Co., et al.*; 1:97-cv-00307-HJW, S.D. Ohio, Dec. 29, 2005
- *Enbridge Pipelines (Toledo) Inc. v. Delta Fuels, Inc., et al.* (Lucas County Common Pleas Court Case No. CI0200603275)
- *French v. Fisher*, 290 B.R. 313 (N.D. Ohio, Mar. 3, 2003)
- *General Motors Corp. v. Costle*, 631 F.2d 466 (6th Cir. 1980)
- *General Motors Corporation v. McAvoy*, 79AP-53, 1979 WL 209553, Ohio Ct. App., December 20, 1979
- *General Motors Corporation v. McAvoy, Director, Ohio Environmental Protection Agency*, 63 Ohio St. 2d 232 (Ohio S. Ct. 1980)
- *General Motors Corporation v. McAvoy*, 1979 WL 209293, Ohio Ct. App., Sept. 4, 1979
- *General Motors Corp. v. U.S. E.P.A.*, 738 F.2d 97 (3rd Cir. 1984)
- *General Motors Corporation v. Williams*, 78AP-851, 1979 WL 209105, Ohio Ct. App., June 12, 1979
- *Graff v. Haverhill North Coke Co.*, 1:09-CV-670, 2012 WL 5495514, S.D. Ohio, Nov. 13, 2012
- *Graham & Graham Properties Trust v. Oxy USA, Inc., et al.*, C-1-00-922, S.D. Ohio
- *In re Consolidated Land Disposal Regulation Litigation*, 938 F.2d 1386 (D.C. Cir. 1991)
- *In re U.S.*, 816 F.2d 1083 (6th Cir. 1987)
- *Jaylin Investments, Inc. v. Moreland Hills*, 107 Ohio St.3d 339 (Ohio S. Ct. 2006)
- *LWD PRP Group v. ACF Industries, LLC, et al.*, 2015 WL 1143019, W.D. Kentucky, Mar. 13, 2015
- *Lyden Company v. Citgo Petroleum Corp., et al.*, 1:91-CV01967, N.D. Ohio, 1992
- *Michigan v. U.S. E.P.A.*, 213 F.3d 663 (D.C. Cir. 2000)
- *Motor Wheel Corp. v. Goodyear Tire & Rubber Co.*, 98 Ohio App. 3d 45 (1994)
- *National Wildlife, et al. v. EPA, et al.*, 2:01-CV-01052, S.D. Ohio
- *National Ass'n. of Metal Finishers v. EPA*, 719 F.2d 624 (3rd Cir. 1983)



- *National Ass'n of Recycling Industries, Inc. v. I.C.C.*, 660 F.2d 795 (D.C. Cir. 1981)
- *National Parks Conservation Ass'n, Inc. v. Tennessee Valley Authority*, 480 F.3d 410 (6th Cir. 2007)
- *Natural Resources Defense Coun. v. Lisa Jackson, et al.*, Case No. 10-3510 U.S. Ct. App., 6th Cir.
- *Natural Resources Defense Council v. Poet BioRefining, et al.*, 987 N.E.2d 531 (Indiana Ct. App. Apr. 30, 2013)
- *Natural Resources Defense Council, Inc. v. Gorsuch*, 685 F.2d 718 (D.C. Cir. 1982)
- *Natural Resources Defense Council, Inc. v. U.S. E.P.A.*, 822 F.2d 104 (D.C. Cir. 1987)
- *Northern Ohio Lung Ass'n v. E.P.A.*, 572 F.2d 1143, 11 ERC 1411 (6th Cir. 1978)
- *O'Brien v. Columbus S. Power Co.*, 73 Ohio App.3d 355, 597 N.E.2d 188 (Mar. 24, 1992)
- *Ohio v. Sierra Club, et al.* (Sup. Ct. 15-684)
- *Ohio Power Co. v. U.S.E.P.A.*, 729 F.2d 1096 (6th Cir. 1984)
- *The Ohio Utility Group, et al. v. EPA, et al.* (D.C. App. Ct. 16-1441)
- *PPG Industries, Inc. v. Costle*, 630 F.2d 462 (6th Cir. 1980)
- *Republic Steel Corp. v. Costle*, 621 F.2d 797 (6th Cir. 1980)
- *Sierra Club v. Costle*, 657 F.2d 298 (D.C. Cir 1981)
- *Sierra Club, et al. v. Dayton Power & Light Inc., et al.*, 2013 WL 55655, S.D. Ohio, Jan. 3, 2013
- *Sierra Club v. U.S. EPA*, 793 F.3d 656 (6th Cir. 2015)
- *Sierra Club v. U.S. EPA, et al.*, No. 12-3182 (6th Cir. 2015)
- *State of Michigan, et al. v. EPA*, 98-1497, 213 F.3d 663 (D.C. Cir. 2000)
- *State of Ohio, ex rel. v. Delphi Automotive Sy., et al.*, 3:00CV00575, S.D. Ohio
- *Textileather Corporation v. GenCorp Inc.*, 3:08 CV 171, 2008 WL 2740816, N.D. Ohio, July 10, 2008
- *Textileather Corporation v. GenCorp Inc.*, 697 F.3d 378 (6th Cir. 2012)
- *Textileather Corp. v. GenCorp Inc.*, 709 F.Supp.2d 597 (N.D. Ohio 2010)
- *Textileather Corp. v. Korleski*, 06AP-955, 06AP-956, WL 2306968, Ct. App. Ohio 10th Dist., Aug. 14, 2007
- *TMACOG v. EPA*, 98-1606, D.C. Cir
- *USA v. Armco Inc., et al.*, 2:95-CV-00698, S.D. Ohio
- *US v. Atlas Lederer Co., et al.*, 494 F.Supp.2d 649 (S.D. Ohio, Mar. 29, 2007)
- *US v. Hardy*, 1992 WL 439759 (S.D. Kentucky, Sept. 9, 1992)
- *USA v. BP Exploration Oil, et al.*, 3:97-CV-07790, N.D. Ohio, May 5, 1999
- *United States of America v. Bunting Bearings LLC*, 3:10CV01527, N.D. Ohio, June 28, 2011
- *United States of America v. Industrial Excess Landfill, Inc., et al.*, 5:89CV1988, N.D. Ohio
- *United States of America v. Teledyne Technologies Incorporated*, 3:008CV01085 N.D. Ohio, June 12, 2008
- *United States of America, et al. v. Summit Equipment & Supplies, Inc., et al.*, 805 F.Supp. 1422 (N.D. Ohio 1992)
- *United States of America and The State of Ohio v. The City of Toledo, Ohio*, 3:91cv7646, N.D. Ohio, Sept. 9, 2002
- *Youngstown Sheet & Tube Co. v. Maynard*, 22 Ohio App.3d 3, 488 N.E.2d 220 (June 7, 1984)

## **Professional and Community Affiliations**

- 2013 – 2017 The National Italian American Foundation, Board of Directors
- 2008 – 2017 ABA Keystone Conference on Environmental Law Planning Committee
- 2004 – present Federal Bar Association
- 1993 – 1998 Court Mediator, U.S. District Court, Northern District of Ohio, Eastern Division
- 1991 – 1992 Mayor's Environmental Advisory Board Land Use Committee, Toledo, Ohio
- 1990 – 1991 Governor Voinovich Committee on Ohio Brownfields Reform, Chair
- 1987 – 1988 Lucas County Local Emergency Planning Committee
- 1985 – 1997 Ohio Chamber of Commerce Energy & Environment Committee
- 1985 – 1997 Toledo Area Chamber of Commerce Environmental Committee
- 1980 – 1984 OSBA Environmental Law Committee, Chair
- 1980 – 1982 Air Quality Committee of ABA Natural Resources Committee, Vice Chair
- 1974 – present American Bar Association
- 1974 – present Ohio State Bar Association

- 1974 – present Toledo Bar Association

## **Other Memberships**

- American Bar Association Section on Administrative Law
- Ohio State Bar Foundation, Life Fellow
- Ohio Chamber of Commerce Energy and Environment Committee
- Ohio EPA Air and Solid Waste Public Advisory Group
- Global Rivers Environmental Education Network (Ann Arbor, MI), Past President
- Toledo Bar Foundation, Fellow
- Toledo Ballet Association
- Toledo Opera

## **Honors**

- The International Who's Who of Environment Lawyers
- Ohio Super Lawyer by *Super Lawyers* magazine
- Best Lawyers in America
- Americas Leading Lawyers for Business, Chambers & Partners, Natural Resources & Environment Practice
- The International Who's Who of Business Lawyers
- *Toledo Business Journal*, "Who's Who in Toledo Area Law"
- AV® Peer Review Rated by Martindale-Hubbell

## **Publications**

- Market Forces, Corporate Policies Drive Shift to Clean Energy, *Environmental Law* 360, Dec. 2019
- Weiss, Kenneth N. and Tosi, Louis E. (July 19, 2004) New Source Review reform adds complexity for US refiners. *Oil and Gas Report*
- Follow-up to article presented with Kenneth N. Weiss at AWMA conference in Houston, Texas in September of 2004 – New Source Review Reform: One Year Later – Refinery Impacts

## **Events and Presentations**

- 10/24/2018 Emerging Trends in Groundwater and Surface Water Regulations: A legal/Technical Conference on Emerging Water Issues and How They Are Affecting the Future for Groundwater and Surface Water Regulation
- 5/23/2018 The Great Lakes Impairment Designation: A special Conference on the Great Lakes Impairment Designation Technical, Social And legal Perspectives Arising from an Impairment Designation (Lessons Learned from Chesapeake Bay)Chairman and Presenter
- 01/20/2015 "Status of Legal Issues of the Clean Power Plan; Implications for the Power Industry" – AHC Executive Workshop on Carbon Innovation, Phoenix, Arizona
- 03/21/2013 "Does the RCRA Citizen Suit Provision Apply to Cross-Media Impacts" – 42nd Spring Conference of the ABA Section of Environment, Energy and Resources, Keystone, Colorado
- 11/15/2012 Presentation of "An Interactive Shale Development Conference: Changing Requirements and Policy Perspective – Developing Ohio's Shale Resources," Columbus, Ohio
- 02/09/2010 "Climate Change: Legislative, Regulatory and Economic Forces at Work" – AHC Group Corporate Affiliates Workshop, Phoenix, Arizona
- 03/29/2006 "RCRA Corrective Action: Leading-Edge Experiences in Implementation" – 15th Annual Business and Industry's Environmental Health & Safety Symposium, Cincinnati, Ohio

- 05/13/1994 “Bringing it All Together Under the New Clean Air Act” – 1994 Law and Patent Conference, Wheeling, West Virginia
- 02/16/1994 “The Clean Air Act – Changes Impacting Ohio Business” – Featured Address at 4th Annual Conference of Environmental Regulation in Ohio, presented by the Institute of Business Law, Cleveland, Ohio
- 09/30/1993 “Envisioning the Future of Great Lakes Water Regulation” – Conference on Great Lakes Water Quality Law – The Guidance and Beyond, Toledo, Ohio
- 04/1992 Ethics Panel for “Impact of Environmental Regulations on Real Estate Transactions” – Ohio CLE Institute, Columbus, Ohio
- 09/26/1991 “Title I – Provisions for Attainment and Maintenance of National Ambient Air Quality Standards – 1991 Ohio Seminar Series: Clean Air Act Amendments, Compliance, Implementation and Current Developments, Toledo, Ohio
- 09/17/1991 Stormwater Discharge Seminar, Program Leader – The Employers’ Association of Northwest Ohio and Southeast Michigan, Sylvania, Ohio
- 09/06/1991 Toledo Bar Association Environmental Law Seminar, Moderator
- 04/09/1991 “The Clean Air Act Amendments of 1990: Electric Utilities; How Title IV (Acid Rain) Accelerates Permitting and Compliance Issues, While Titles III (Toxics), V (Permitting), and I (Nonattainment) Leave More to Come” – Semi-Annual Ohio Industrial Environmental Symposium, Columbus, Ohio
- 03/26/1991 “Negotiating Findings and Orders and Consent Orders” – Ohio Environmental Regulation Conference, Cleveland, Ohio
- 03/21/1991 “Suggestions for the Development of an Urban Policy to Address Environmental Constraints on the Reuse of Ohio’s Industrial Property” – Presentation to Ohio Governor Voinovich Cabinet Meeting, Toledo, Ohio
- 10/31/1990 “Environmental Liability – Regulatory” – DRI Corporate Counsel Committee, Chicago, Illinois
- 11/17/1989 “Environmental Litigation: An Overview of Claims and Defenses Available in an Environmental Case” – Columbus Bar Association Litigation Practice Institute, Columbus, Ohio
- 11/10/1989 “RCRA Corrective Action Orders” – 6th Annual Ohio State Bar Association Environmental Law Seminar, Dellroy, Ohio
- 11/08/1989 Presentation on industrial hazardous waste – Hazardous Material International Conference, Long Beach, California
- 06/15/1989 “Analyzing Your Liability: An Unqualified Transporter Can Put You in a Quicksand of Legal Problems” – 7th Annual Haz Mat International Conference, Atlantic City, New Jersey
- 03/01/1989 Lake Bluff Regional Superfund Conference, Speaker, Lake Bluff, Illinois
- 09/22/1988 Dinner speaker on environmental topics – General Motors Corporation, BOC Environmental Engineers Seminar, Higgins Lake, Michigan
- 09/19/1985 Inland Spills Conference, Legal Update Chair and Speaker, Toledo, Ohio
- 10/28/1984 International Recycling Congress & Study Tour, Berlin and Federal Republic of Germany
- 09/22/1983 “How Industry Can Comply with Pretreatment Regulations – A Continuing Legal Education Program” – Illinois Institute of Technology, Chicago, Illinois
- 05/04/1981 EPA Workshop on the Role of Atmospheric Models in the Air Quality Management Process – U.S. Environmental Protection Agency, Office of Air Quality Planning and Standards, Washington, D.C., invited participant

## **Languages**

- Italian (basic)

## **QUALIFICATIONS OF ROBERT J. WEILER**

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### **EDUCATIONAL BACKGROUND**

- Bachelor of Science Degree in Business Administration, University of Arizona, 1957
- Master of Arts Degree in Real Estate, The Ohio State University, 1964
- Doctor of Philosophy (Ph.D.), The Ohio State University, 1968
- Juris Doctor (J.D.) Degree, Capital University Law School, 1983

### **REAL ESTATE EXPERIENCE**

- Realtor® since 1957
- Full time real estate appraisal profession since 1959
- Chairman of the Board of The Robert Weiler Company
- Developer of numerous subdivisions and apartment/office/industrial complexes in Central Ohio
- Real estate consulting since 1970
- Adjunct Professor, Capital University Law School and Capital University MBA Program
- Adjunct Professor, OSU Moritz College of Law
- Contributing Editor, *The Appraisal of Real Estate*
- C-Suite Lifetime Achievement Award Recipient from *Columbus Business First* (2020)

### **CLIENTS REPRESENTED**

- Individuals
- Investors
- Mortgage Lenders
- Realtors®
- Churches
- City of Columbus
- State of Ohio
- Franklin County Auditor
- Department of Development
- The Ohio State University
- Attorneys
- Numerous large corporations, including several listed on the New York Stock Exchange

### **MEMBERSHIPS**

- Licensed Certified General Real Estate Appraiser, State of Ohio
- Columbus Board of Realtors®; Director, Past President
- Ohio and National Association of Realtors®; Board of Directors, 1977-79, National Association of Realtors®
- American Institute of Real Estate Appraisers;<sup>1</sup> Past President, Ohio Chapter #3; MAI designation
- Society of Real Estate Appraisers;<sup>1</sup> Past President, Columbus Chapter, Instructor of SRA courses
- Columbus and Ohio State Bar Associations
- Past Chairman, Ohio Real Estate Appraisal Board
- Past Chairman, Capital University Board of Trustees
- Past Board Member, Columbus Board of Education; President 1987
- Past Board Member, Central Ohio Transit Authority (COTA)
- Past Board Member, Center of Science and Industry (COSI)
- Board of Trustees, Metropolitan YMCA; Past Chairman
- Founding Member & Chairman, Affordable Housing Trust
- Board of Trustees, Ohio Capital Corporation for Housing
- Board of Trustees, Columbus Urban League
- Board of Trustees, Columbus Bar Foundation
- Founding Member, Central Ohio Community Improvement Corporation (COCIC)
- Managing Partner, Polaris Centers of Commerce

<sup>1</sup>Unified as the Appraisal Institute, January 1, 1991

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